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Business Associates Agreement

This Business Associates Agreement ("Agreement") is made on _____, _____ by and between Meridian Surgical Supplies, LLC, a Wyoming limited liability company ("MSS"), with offices at 235 Singleton Ridge Road, Conway, South Carolina 29526, and_____, _____("Client"),

with offices at _____, _____

The purpose of this agreement is to comply with certain requirements of the standards for privacy of individually identifiable health information and the security standards for the protection of electronic health information, 45 C.F.R. Part 160 and Part 164 (the "Privacy and Security Regulations") under the Health Insurance Portability and Accountability Act of 1996 ("HIPAA") that involve the use and/or disclosure of protected health information (as defined below, and including but not limited to electronic protected health information) that is used or disclosed by business associate for or on behalf of covered entity in connection with those certain services furnished by business associate pursuant to the underlying products and services agreement (the "agreement") that has been or may be entered into by the parties.

1. Definitions

(a) Catch-all definition: Terms used, but not otherwise defined, in this agreement shall have the same meaning as those terms are given when defined in the privacy and security regulations.
(b) "Availability" shall mean the same as it means at 45 C.F.R. 164.304.
(c) "Business associate" shall mean MSS.
(d) "Confidentiality" shall mean the same as it means at 45 C.F.R. 164.304.
(e) "Covered entity" shall mean client.
(f) "Days" shall mean calendar days.
(g) "Electronic protected health information" or "EPHI" shall mean the same as it

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means at 45 C.F.R. 160.103.
(h) “Integrity” shall mean the same as it means at 45 C.F.R. 164.304.
(i) “Protected health information” or “PHI” shall have the meaning set forth at 45 C.F.R. 160.103.
(j) “Security incident” shall mean the same as it means at 45 C.F.R. 164.304.
(k) “Security measures” shall mean the same as it means at 45 C.F.R. 164.304.

2. Obligations and activities of business associate

(a) Business associate agrees not to use or disclose PHI other than as permitted or required by this agreement or as required by law.
(b) Business associate agrees to use appropriate safeguards to prevent use or disclosure of PHI other than as provided for by this agreement. For EPHI, business associate agrees to develop, implement, maintain, and use reasonable administrative, physical, and technical safeguards to ensure the integrity, confidentiality, and availability of EPHI.
(c) Business associate agrees to mitigate, to the extent practicable, any harmful effect resulting from use or disclosure of PHI in violation of this agreement.
(d) Business associate agrees to report to covered entity any use or disclosure of PHI not provided for by this agreement, as well as any security incidents, within 10 days of becoming aware.
(e) Business associate agrees to ensure that any subcontractor or agent to whom it provides PHI agrees to the same restrictions and conditions.
(f) Business associate agrees to provide access to PHI in a designated record set to covered entity or, if requested in writing by covered entity, to an individual within 15 days.
(g) Business associate agrees to make its internal practices, books, and records related to PHI available to the Secretary of Health and Human Services for compliance reviews.
(h) Business associate agrees to accommodate amendments to PHI as directed by covered entity.
(i) Business associate agrees to track and document disclosures of PHI to support an individual’s right to receive an accounting of disclosures.
(j) Business associate agrees to provide such accounting information within 30 days of a request.

3. Permitted uses and disclosures by business associate

(a) Business associate may use PHI as necessary for its management and administration or to fulfill its legal responsibilities.
(b) Business associate may disclose PHI if required by law or if the recipient provides reasonable assurances it will remain confidential and be used only as permitted.
(c) Business associate may use PHI to provide data aggregation services to

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covered entity or to create de-identified health information, as permitted under HIPAA.

4. Obligations of covered entity

(a) Covered entity shall notify business associate of any limitation in its notice of privacy practices that affects use/disclosure of PHI.
(b) Covered entity shall notify business associate of any changes in or revocation of authorization by an individual.
(c) Covered entity shall notify business associate of any restriction agreed upon with the individual.
(d) Covered entity shall not request business associate to use or disclose PHI in any manner not permitted by HIPAA.

5. Term and termination

(a) Term – This agreement is effective as of the effective date and remains in effect until all PHI is returned or destroyed.
(b) Termination by covered entity – Covered entity may terminate this agreement immediately if it determines business associate has materially breached it. If cure is possible, business associate must do so within 30 days or termination proceeds.
(c) Termination by business associate – Business associate may terminate with 30 days' notice if material conditions change or the covered entity breaches this agreement.
(d) Automatic termination – This agreement terminates automatically upon expiration or termination of the underlying agreement.
(e) Effect of termination – Upon termination, business associate must return or destroy all PHI. If infeasible, business associate must notify covered entity and continue protecting PHI in accordance with this agreement.

6. Miscellaneous

(a) Regulatory references – References to HIPAA regulations refer to current versions or as amended.
(b) Amendments – Parties agree to amend this agreement as necessary to comply with HIPAA.
(c) Survival – The obligations in section 5(e) survive termination.
(d) Interpretation – Any ambiguity shall be resolved to permit compliance with HIPAA.
(e) No third party beneficiaries – This agreement benefits only the parties and their permitted successors.
(f) Coordination – In case of conflict between this agreement and the underlying agreement, this agreement controls.
(g) Choice of law – This agreement shall be governed by federal law and the law of the state where the covered entity is located.

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7. Own acts

Each party is responsible for its own acts or omissions and shall not be required to indemnify the other for the other's conduct.

8. Insurance

(a) Business associate shall maintain reasonable liability insurance with minimum coverage of $1 million per claim / $3 million annual aggregate.
(b) Upon request, the business associate shall provide proof of insurance and notify the covered entity of any changes or cancellations.

9. Notice

All required notices must be in writing and delivered personally, by certified mail, overnight courier, or facsimile with confirmation. Notices should be sent to the addresses listed in the underlying agreement.

MERIDIAN SURGICAL SUPPLIES, LLC	**CLIENT**
Name: Dr John Pienkos	Name:
Title: CEO	Title:
Date:	Date:
Signature:	Signature: